

encouraged to notify the Court in advance of the continued hearing.

Accordingly, the demurrer is continued for counsel to meet and confer as required by the Code of Civil Procedure and this order. If the parties are unable to resolve the issues raised in the demurrer, and the Court's tentative ruling on the merits is contested, counsel may appear at that hearing to argue. Attorney Kuyawa shall file and serve a declaration describing the results of the meet and confer **no later than August 7, 2026.**

**7. 9:00 AM CASE NUMBER: C26-00404
CASE NAME: RAKEISHA HILL VS. CITY OF RICHMOND
HEARING ON DEMURRER TO: 1ST AMENDED COMPLAINT
FILED BY: CITY OF RICHMOND**

TENTATIVE RULING:

Introduction

Before the Court is Defendant City of Richmond's ("Defendant" or "The City") Demurrer to all causes of action in Plaintiff Rakeisha Hill's ("Plaintiff") First Amended Complaint "FAC". The FAC filed on April 20, 2026, contains three causes of action: 1) FEHA Disparate Treatment; 2) FEHA Retaliation; and 3) Whistleblower Retaliation.

For the following reasons, the **Demurrer to the FAC is sustained in part and overruled in part. The first cause of action is sustained with leave to amend, the second cause of action is overruled, and the third cause of action is sustained without leave to amend.**

Meet and Confer Requirement

Defendant satisfied its meet and confer requirement regarding their Demurrer in detailing their meet and confer efforts with Plaintiff's counsel in the Declaration of Charles R. Hellstrom. On May 13, 2026, Defendant emailed a meet and confer letter to Plaintiff. The next day the parties discussed the issues set forth in the meet and confer letter and were unable to come to an agreement. (Hellstrom Decl. at ¶¶3-4.)

Request for Judicial Notice

Defendant City of Richmond request that two exhibits be judicially noticed. Exhibit 1 is Plaintiff Rakeisha Hill's Government Claim and Application for Leave to Present Late Claim, dated September 16, 2025, and received by the City on September 19, 2025. Exhibit 2 is an October 31, 2025, letter from George Hills Company, Inc., the City's claims administrator, to Plaintiff denying Plaintiff's Application for Leave to Present a Late Claim.

Evidence Code section 452, subdivision (c), permits the Court to take judicial notice of "[o]fficial acts of the legislative, executive, and judicial departments of the United States and of any state of the United States." Defendant argues that judicial notice is proper under Exhibits 1 and 2 are City records concerning Plaintiff's attempted compliance with the Government Claims Act and the City's official action on Plaintiff's late-claim application. Courts may take judicial notice of the existence, filing, and contents of government claim documents and public entity records, though not the truth of disputed factual allegations contained in those documents. (See *Gong v. City of Rosemead* (2014) 226 Cal.App.4th 363, 376 [where plaintiff alleges claim-presentation compliance, but public records do not reflect compliance, the public entity may request judicial notice under Evid. Code, § 452(c).])

Judicial Notice for Defendant's Exhibit 1 and 2 is granted.

Statement of Facts

The facts as alleged in the First Amended Complaint "FAC" are as follows.

Plaintiff alleges that she began working for the Richmond Police Department ("RPD") as a Police Records Specialist on or about April 20, 2009, completed probation in that position in April 2010, and was promoted to Police Officer Trainee on or about January 23, 2023. (FAC ¶¶ 9–11.) In that capacity, the City sponsored Plaintiff's attendance at the Contra Costa County Law Enforcement Training Center ("Academy"). (Id. at ¶ 11.)

Plaintiff struggled with certain Academy training requirements, including the Emergency Vehicle Operations Course ("EVOC") and Defensive Tactics, Arrest and Control ("DTAC"). (FAC at ¶¶ 14–19.) Lieutenant Daniel Reina canceled supplemental EVOC training and "rebuffed" DTAC training. (Id. at ¶¶ 17–18.) On March 29, 2023, Lieutenant Reina asked whether she had a "learning disability" and later referenced a "psychological disorder." (Id. at ¶¶ 19–21.) On April 21, 2023, Plaintiff was terminated from Academy Class 197 after an unsuccessful EVOC remediation attempt, but the City later re-sponsored her for Academy Class 198. (Id. at ¶¶ 22–23.)

During Class 198, Plaintiff was pressured to re-complete TASER and drive-stun exposure training, and Academy personnel made comments about recruits who screamed or declined optional drive-stun exposure. (FAC. at ¶¶ 24–27.) On August 20, 2023, she filed a complaint with POST against Academy personnel alleging "hazing and unfair treatment" of Plaintiff and other recruits. (Id. at ¶ 28.) Plaintiff believed the POST complaint would be confidential. (Id. at ¶ 29.)

After she filed the POST complaint, Sergeant Miles Bailey notified her of a Contra Costa County Sheriff's Office Internal Affairs investigation involving Academy staff. (FAC at ¶¶ 30–32.) Sergeant Bailey later requested a copy of the POST complaint, and Plaintiff provided it because she understood the request to be an order from a commanding officer. (Id. at ¶¶ 33–34.) Sergeant Bailey later acknowledged that senior command staff, including Police Chief Bisa French, were aware of the POST complaint. (Id. at ¶ 35.) Plaintiff continued to experience intimidation at the Academy, including a November 8, 2023 "Building Search" admonition, and later heard from an unspecified source that she had been called a "snitch." (Id. at ¶¶ 38–43.)

Plaintiff graduated from the Academy on January 5, 2024, and was sworn in as a probationary police officer on January 8, 2024. (FAC. at ¶¶ 42, 48.) Plaintiff was told by an unspecified individual that some Field Training Officers were reluctant to train her because of her POST complaint and perceived her as a "disciplinary risk." (Id. at ¶¶ 44–47.) On February 5, 2024, Plaintiff requested a two-week delay before beginning the Field Training Program ("FTP"), citing fatigue and "burnout" after completing two Academy classes. (Id. at ¶ 49.) Captain Eric Smith placed her on administrative leave and ordered her to undergo a Fitness-for-Duty Evaluation. (Id. at ¶¶ 50–54.) Plaintiff was later found fit for duty and returned to work. (Id. at ¶ 54.)

Plaintiff began field training, advanced to Phase 2 on or about May 19, 2024, and was placed on injury leave after a prior knee injury flared. (FAC at ¶¶ 57–58.) Captain Smith told her she had improved in Phase 2 and encouraged her to return earlier than her physician recommended. (Id. at ¶ 59.) Plaintiff returned to work in September 2024, completed firearms training, and was assigned to FTP Team 1 with FTO Daniel Campos, which meant she was returned to Phase 1 despite having previously advanced to Phase 2. (Id. at ¶¶ 60–63.)

In early October 2024, Plaintiff was summoned to appear before the Probationary Review Board

("PRB"). (FAC at ¶¶ 64–65.) FTO Campos identified concerns about DTAC and Code 3 driving and stated he would defer to the PRB whether Plaintiff should advance to Phase 2 or again repeat Phase 1. (Id. at ¶¶ 66–68.) Plaintiff appeared before the PRB on October 4, 2024. (Id. at ¶¶ 69–72.) As there was no indication that termination was being considered, she was directed to report to work on October 7, 2024, with the same FTO. (Id. at ¶¶ 72–74.)

On October 7, 2024, Plaintiff reported to work but was directed back to RPD headquarters. (FAC at ¶¶ 75–78.) Lieutenant Reina and Sergeant Bailey informed her that the PRB had decided to reject her from the FTP. (Id. at ¶ 78.) Plaintiff received a written notice from Chief French stating that she was rejected from probation for failure to meet performance standards. (Id. at ¶ 79.) Chief French stated the PRB had recommended that Plaintiff repeat Phase 1 again, and that the concern was Plaintiff becoming a "liability" for the RPD. (Id. at ¶ 80.) Chief French stated that if Plaintiff were ever involved in an officer-involved shooting, questions could arise regarding Plaintiff's suitability to be an officer because she had repeated Phase 1 multiple times. (Id.) Chief French also stated she could not return to her prior Police Records Specialist position because there were no available positions. (Id. at ¶ 83.)

Plaintiff alleges she should have been returned to her prior permanent civil service position rather than processed as fully terminated. (FAC at ¶¶ 84, 87–88.) However, because she believed she had been terminated entirely, she took an early pension disbursement and thereby lost "hundreds of thousands of dollars" in retirement benefits she claims she would have received within six years. (Id. at ¶¶ 85, 116–117, 131.) On or around October 20, 2024, Chief French advised that Plaintiff could return to the RPD as a Records Specialist. (Id. at ¶ 86.)

Plaintiff alleges her termination was motivated by assumptions about her fitness for duty, her gender, her age, her willingness to complain about academy hazing, and perceptions that she might report future misconduct. (FAC at ¶¶ 89, 98, 114–115.) Plaintiff further alleges younger or similarly situated probationary officers received additional training opportunities or were returned to civilian positions. (Id. at ¶¶ 90–95, 111–119.)

Plaintiff alleges she exhausted administrative remedies by sending a November 20, 2024 "claim packet" to the Richmond City Attorney, Kimberly Chin, even though the City Attorney responded that the office could not accept service and that the documents "have not been received by the City of Richmond." (FAC at ¶¶ 99–102.) As shown in Exhibit A to Plaintiff's FAC, Ms. Chin advised that she was not authorized to accept service, and she directed Plaintiff to submit her claim packet to the City Clerk. (FAC Exhibit A.) There is no allegation that Plaintiff followed this directive.

Legal Standard

"The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint "is sufficient if it alleges ultimate rather than evidentiary facts" (*Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 550 ("*Doe*")), but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe* at 551, fn. 5.) The Court "assume[s] the truth of the allegations in the complaint but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Uncertainty is a well-established ground of demurrer. (*Martin v. Bank of San Jose* (Cal. App. 1929) 98 Cal. App. 390.) The objection of uncertainty does not go to failure to allege sufficient facts but to

doubt as to what the pleader means by the facts alleged. (*Brea v. McGlashan* (1934) 3 Cal. App. 2d 454.) A special demurrer for uncertainty is not intended to reach the failure to incorporate sufficient facts in the pleading but is directed at the uncertainty existing in the allegations actually made. (*Butler v. Sequeira* (1950) 100 Cal. App. 2d 143.) A Complaint is ambiguous and uncertain where it cannot be ascertained therefrom whether acts complained of were committed by defendants in their individual capacity, or in one of other capacities in which they are alleged to have acted. (*Lapique v. Ruef* (1916) 30 Cal. App. 391.)

Analysis

First Cause of Action for FEHA Disparate Treatment

To establish a claim for discrimination, a plaintiff must demonstrate that: “(1) she was a member of a protected class; (2) she was qualified for the position she sought or was performing competently in the position held; (3) she suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstances [that] suggest a discriminatory motive.” (*Guz v. Bechtel National, Inc.* (2000) 24 Cal.4th 317, 354.) In addition, a plaintiff must show that her protected class was a substantial motivating reason for the adverse employment action. (See *Harris v. City of Santa Monica* (2013) 56 Cal.4th 203, 233.)

Discriminatory Motive

Defendant contends that The First Cause of Action does not allege facts supporting a reasonable inference that Plaintiff’s race, sex, age, disability, perceived disability, or medical condition substantially motivated the City’s decision to reject her from probation or temporarily process her as separated from employment. Instead, the FAC alleges in broad strokes that the City acted because of Plaintiff’s “gender,” “age,” “perceived deficiencies,” knee injury, leave request, and supposed propensity to “whistle blow.” (FAC ¶¶ 89, 114–115.)

Contrary to Defendant’s stance the allegations in the FAC do meet the pleading standards. The FAC alleges Plaintiff is a member of multiple protected classes, including race, gender, age, disability/perceived disability, and medical condition. (See, e.g., FAC at ¶¶ 108, 115.) Plaintiff had and was performing competently for years at the Department and was progressing toward non probationary officer status. (Id. at ¶ 62, 116.) Plaintiff suffered adverse employment actions, which included rejection from probation and separation from employment. (Id. at ¶¶ 75-83.) More importantly, and directly in contradiction to Defendant’s reading of the FAC, circumstances exist suggesting discriminatory motive, namely that “similarly situated, yet younger officers whose purportedly confidential POST complaints were not made public knowledge, enjoyed different experiences by being offered multiple attempts to complete the FTP and/or being offered alternative civilian roles upon dismissal from FTP, despite known performance concerns.” (Id. at ¶ 90.)

Exhaustion of Administrative Remedies

An employee who wants to bring a civil action under the FEHA must exhaust the administrative remedy provided by the statute by first filing a complaint with the Civil Rights Department (“CRD”) and obtaining from the CRD a notice of right to sue. (See Gov. Code, § 12960.) The timely filing of an administrative complaint is a prerequisite to bringing a civil action for damages. (*Wawrzynski v. United Airlines, Inc.* (2024) 106 Cal.App.5th 663, 694.) The scope of a civil action is limited to those facts that could have reasonably been uncovered from an investigation into the CRD complaint. (*Wills v. Superior Court* (2011) 194 Cal.App.4th 312, 322-326.) “Failure to exhaust administrative remedies is a jurisdictional procedural defect which bars court action.” (*Barnes v. State Bd. of Equalization* (1981)

118 Cal.App.3d 994, 1001.)

Defendant contends that Plaintiff's age theory cannot support the First Cause of Action because Plaintiff did not exhaust age discrimination in her administrative filings. Neither of the CRD complaints attached as Exhibits B and C1 to the FAC identifies age as a protected basis – that claim would not have been explored through an investigation by the CRD or the City, because Plaintiff omitted it.

A similar situation came up *Yurick* where the Third District Court of Appeal concluded that a "plaintiff's claim of gender discrimination alleged in her administrative charge did not encompass the cause of action for age harassment alleged against Yurick in her lawsuit. To permit her to pursue that cause of action would undermine vital policy interests embodied in FEHA, i.e., the resolution of disputes and elimination of unlawful employment practices by conciliation." (*Yurick v. Superior Court* (1989) 209 Cal.App.3d 1116, 1123.) Here, neither the October 28, 2025, or the January 26, 2026, Civil Right Complaint includes an allegation of age discrimination. (FAC Exhibits B and C.)

The Court will grant leave to amend since the Plaintiff could possibly amend a complaint to include age discrimination.

The Demurrer as to Plaintiff's first cause of action for FEHA disparate treatment is sustained with leave to amend.

Second Cause of Action for Breach of FEHA Retaliation

To establish a claim of FEHA retaliation, a plaintiff must show: (1) she engaged in a protected activity; (2) the City subjected her to an adverse employment action; and (3) a causal link existed between the protected activity and the adverse action. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1042.) An employee engages in FEHA-protected activity when: (1) she makes a charge, testifies, assists or participates in any manner in proceedings or hearings under the statutes; or (2) opposes acts made unlawful by the FEHA. (See Gov. Code, § 12940(h).) To this end, the employee must oppose conduct she/he reasonably believes constitutes unlawful discrimination, and "complaints about personal grievances or vague or conclusory remarks that fail to put an employer on notice as to what conduct it should investigate will not suffice to establish protected conduct." (*Yanowitz*, supra, 36 Cal.4th at 1047.)

POST Complaint

Defendant argues that the POST Complaint filed by Plaintiff alleges Academy hazing, unfair treatment, training practices, and abuse of authority which is not a protected activity under FEHA. (Motion at pp. 15-16.)

Plaintiff rebuts Defendant's argument by stating FEHA (via Section 12940(j)(1)) prohibits "harassment" which broadly includes behavior toward employees or trainees that equates to bullying or hazing. (Gov. Code § 12940(j)(1).) Plaintiff also points to the prospect that FEHA accordingly protects any employee who opposes conduct she reasonably and in good faith believes to be discriminatory – "whether or not the challenged conduct is ultimately found to violate the FEHA." (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1043.)

The Demurrer as to Plaintiff's second cause of FEHA retaliation is overruled.

Third Cause of Action for Labor Code Section 1102.5 Whistleblower Retaliation

The Government Claims Act establishes conditions precedent to filing suit for money or damages

against a public entity. (Gov. Code §§ 905, 911.2, 945.4.) Claims for personal injury must be presented within six months after accrual. (Gov. Code § 911.2(a).) Timely claim presentation is not merely procedural; it is a condition precedent to maintaining suit against a public entity. (*State of California v. Superior Court (Bodde)* (2004) 32 Cal.4th 1234, 1239-1245.)

A claim against a public entity for “injury to person” must be presented no later than six months after accrual. (Gov. Code § 911.2(a).) The claim may only be “presented” by delivering it to (or mailing it to) the clerk, secretary, or auditor, or by mailing it to the governing body at its principal office. (Gov. Code § 915(a).) “Compliance with section 915(e)(1) requires actual receipt of the misdirected claim by one of the designated recipients. If an appropriate public employee or board never receives the claim, an undelivered or misdirected claim fails to comply with the statute.” (*DiCampli-Mintz v. County of Santa Clara* (2012) 55 Cal.4th 983, 992-993.)

“The failure to timely present a proper claim ... bars a plaintiff from filing a lawsuit against that entity.” (*Gong*, supra, 226 Cal.App.4th at 374.) Thus, “[e]ven if the public entity has actual knowledge of facts that might support a claim, the claims statutes still must be satisfied. [Citation.]” (*DiCampli-Mintz*, supra, 55 Cal.4th at 990.) If the plaintiff’s complaint does not allege facts establishing such exhaustion of administrative remedies, it is subject to demurrer. (*Roman v. County of Los Angeles* (2000) 85 Cal.App.4th 316, 325-326.)

Government Claims Presentation

Labor Code section 1102.5 claims against public entities are subject to the Government Claims Act. (See *Le Mere v. Los Angeles Unified School Dist.* (2019) 35 Cal.App.5th 237, 247 248.)

The FAC also alleges that the City Attorney responded that the City Attorney’s Office could not accept service and that the documents “have not been received by the City of Richmond.” (FAC at ¶ 101.) This defeats proper presentation under Government Code section 915.

The City’s judicially noticeable claim correspondence confirms the defect. After the ineffective email to the City Attorney, Plaintiff submitted an Application for Leave to Present Late Claim, dated September 16, 2025. (RJN, Ex. 1.) That application acknowledged the claim was not presented within the six-month claim period and sought leave to present a late claim under Government Code section 911.4. (Id.) The City denied the late claim on October 31, 2025. (RJN, Ex. 2.) The denial notice advised Plaintiff that, before filing suit, she was required to petition the Court for relief under Government Code section 945.4, and that any such petition had to be filed within six months of the denial. (RJN, Ex. 2.)

RE: Our Client: City of Richmond
GHC Claim #: GHC0088399
Master Claim #: 2025-0205
Claimant: Rakeisha Hill
Date of Loss: October 7, 2024

DENIAL OF APPLICATION FOR LEAVE TO PRESENT A LATE CLAIM

As the claims administrator for the City of Richmond, George Hills provides the following notice:

Consistent with Government Code section 911.8, notice is hereby given that the Application for Leave to Present Late Claim, which you presented to the City of Richmond, on September 16, 2025, was denied on October 31, 2025.

WARNING

If you wish to file a court action on this matter, you must first petition the appropriate court for an order relieving you from the provisions of Government Code Section 945.4 (claims presentation requirement). See Government Code Section 946.6. Such petition must be filed with the court within six (6) months from the date your application for leave to present a late claim was denied.

That six-month deadline expired on April 30, 2026. (Motion at p. 18: 2-3.) Plaintiff did not allege or provide evidence of her filing of a Government Code section 946.6 petition by that deadline.

This failure is fatal to the Labor Code section 1102.5 claim. The defect is procedural, jurisdictional in effect, and incurable by another amendment.

Plaintiff argues that she substantially complied with Government Code section 911.2's notice requirements. Plaintiff reasons that they provided notice to the Richmond City Attorney and that she had a year to bring her claim. Both reasons are wrong. Under California Government Code Section 915, a city attorney is not the statutorily designated recipient for government claims. To be legally valid, the claim must be presented to the city clerk, secretary, auditor, or the governing body. (Gov. Code § 915.) A violation of Labor Code section 1102.5 mandates that government tort claim be presented within six months of the acts as required by the Government Claims Act. (*Willis v. City of Carlsbad* (2020) 48 Cal.App.5th 1104, 1110.)

The Demurrer is sustained without leave to amend as to the third cause of action for Labor Code Section 1102.5 Whistleblower Retaliation.

Conclusion

For the reasons analyzed above, the **Demurrer to the FAC is sustained in part and overruled in part. The first cause of action is sustained with leave to amend, the second cause of action is overruled, and the third cause of action is sustained without leave to amend. The amended pleadings shall be filed within 15 days of service of notice of entry of this order.**

8. 9:00 AM CASE NUMBER: C26-00404
CASE NAME: RAKEISHA HILL VS. CITY OF RICHMOND
*HEARING ON MOTION IN RE: STRIKE PORTIONS OF FIRST AMENDED COMPLAINT